Department of **Planning, Lands and Heritage**

GOVERNMENT OF WESTERN AUSTRALIA

Our ref: PLH2026P
Enquiries: foi@dplh.wa.gov.au

[applicant]
Via email to: [email withheld]

Dear [applicant]

FREEDOM OF INFORMATION NOTICE OF DECISION – FOI 4750

I refer to your application made under the *Freedom of Information Act 1992* (the Act) dated 13 September 2026 seeking access to the following in relation to the Graylands Reconfiguration Program Stage 1 and the relocation of the Claremont Therapeutic Riding Centre:

1. *"Any document recording, considering, recommending or determining the planning approval pathway proposed, considered or selected for the Project or any component or stage of it, including any consideration of whether it is or is not a public work, whether it is subject to referral or determination under the Metropolitan Region Scheme, delegated determination, the Part 11B Significant Development Pathway, a Development Assessment Panel, or development application to the City of Nedlands. This includes any assessment of whether the Project or any component of it constitutes a public work for planning approval purposes. Where the pathway differs between Lot 15061 and Lot 551, the pathway for each component is requested.*
2. *Any advice, internal or external, as to whether the Project or any component of it requires a development application, and as to whether public advertising, public consultation or a public submission period applies to any approval step.*
3. *All referrals, applications, notices, determinations, approvals and conditions issued or received in respect of the Project, including any region scheme referral, any decision or resolution of the Western Australian Planning Commission or its committees, and any decision of a Development Assessment Panel.*
4. *Any referral of the Project to the Heritage Council of Western Australia under the Heritage Act 2018 in respect of State Registered Place 13630 (Graylands Hospital), any heritage advice given by the Heritage Council, the Department or any other State Government agency, or prepared by or for the Proponent or its consultants, in respect of the Project, and any correspondence with the Proponent or its consultants concerning whether a Heritage Impact Statement is required, whether the proposed works affect the registered place, and the extent of the registered place affected. This includes any assessment of whether the proposed works constitute development affecting the registered place or require approval, referral, notification or advice under the Heritage Act 2018.*

5. *Any document recording anticipated approval milestones and indicative dates for each stage of the Project, including any Ministerial briefing note on the approval pathway or program."*

Time period: 1 January 2021 to 13 September 2026.

You have been granted full access to a copy of one document and edited access to copies of five documents falling within the scope of your application. These documents are outlined in the Document Schedule at Appendix 1. Text shaded yellow in the documents has been redacted with your consent as it relates to the personal information of current and former officers and is not within the scope of your Freedom of Information application.

On 16 October 2026, item 5 of your application was transferred to the Department of Health.

In relation to items 1 and 2 of your application, we are unable to meet your request, as the documents do not exist.

Section 26 of the Act allows an agency to refuse access to a document if the document cannot be found or does not exist. A copy of section 26 of the Act is provided at Appendix 2.

In accordance with sections 26(1)(a) and 26(b)(ii) of the Act and following a detailed search of the Department's record management system and in consultation with senior officers from the Land Use Planning and Land Use Management divisions, no documents were found pertaining to these items.

For your awareness, in April 2026 ADCO Construction was awarded the Early Contractor Involvement contract to commence design work for the Graylands Campus Project. To date, the Department has not been involved or consulted in relation to any planning and development matters relating to the project.

RIGHT OF REVIEW

If you are not satisfied with this decision, you have a right to apply for internal review. An application for internal review may be lodged with this agency within 30 days after being given this written notice of decision and must:

- be in writing;
- provide particulars of the decision to be reviewed; and
- give an address in Australia.

An application for internal review can be lodged by mail or email to:

Department of Planning, Lands and Heritage
140 William Street
Locked Bag 2506
Perth WA 6001
Email: foi@dplh.wa.gov.au

There is no lodgement fee for an application for internal review and there are no charges for dealing with an internal review request.

If an application for internal review is received, it will not be dealt with by the person who made the initial decision or by any person who is subordinate to the original decision maker. The outcome of an application for internal review will result in the initial decision under review being either confirmed, varied or reversed.

Yours sincerely



Ms Tia Byrd
Acting Assistant Director General
Land Use Planning

29 October 2026

Att

Appendix 1

Document Schedule – FOI Application 4750

Document No.	Document Type	Document	No. of Pages	Type of Access
1	Email	Referral response from the South West Settlement project team dated 18 May 2023	2	Edited
2	Email	Referral response from the City of Nedlands dated 23 May 2023	3	Edited
2(a)	Map	Relocation of Claremont Therapeutic Riding Centre	2	Full
3	Email	Referral response from Water Corporation (Attachment – Refer to Document 2(a)	2	Edited
4	Email	Metropolitan Region Scheme impacts to the Claremont Therapeutic Riding Centre dated 5 Mar 2025	3	Edited
5	Email	Heritage impacts to the Graylands development dated 23 Jul 2026	4	Edited

Appendix 2

Extract from the *Freedom of Information Act 1992*

Section 26. Documents that cannot be found or do not exist

(1) The agency may advise the applicant, by written notice, that it is not possible to give access to a document if –

(a) all reasonable steps have been taken to find the document; and

(b) the agency is satisfied that the document –

i. is in the agency's possession but cannot be found; or

ii. does not exist.

(2) For the purpose of this Act the sending of a notice under subsection (1) in relation to a document is to be regarded as a decision to refuse access to the document, and on a review or appeal under Part 4 the agency may be required to conduct further searches for the document.

Released under the Freedom of Information Act 1992

From: Southwest Settlement
Sent: Thursday, 18 May 2023 10:44 AM
To:
Cc: Southwest Settlement
Subject: RE: Referral - Case Number 2301113 – Metropolitan

OFFICIAL

Morning

Thank you for referring to the South West Settlement project team for comments on the proposed relocation of Claremont Therapeutic Riding Centre to Reserve 39478, Lot 10764 (not Lot 10774 as noted in your email below) on DP187436 (Case Number 2301113).

Please find the below response to your questions:

1. **Confirm that a Native Title Consideration Matrix (NTCM) will not be required for this Case.**
   As detailed in your below referral, Clause 6 of the registered Indigenous Land Use Agreements for the South West Native Title Settlement, provides for the surrender of native title rights and interests over the Agreement Area on and from 13 April 2021, pursuant to section 24EB(1)(b)(i) and 24EB(1)(d) of the Native Title Act 1993 (Cth) (NT Act); and regulation 7(5)(a) and 7(5)(c) of the ILUA Regulations.

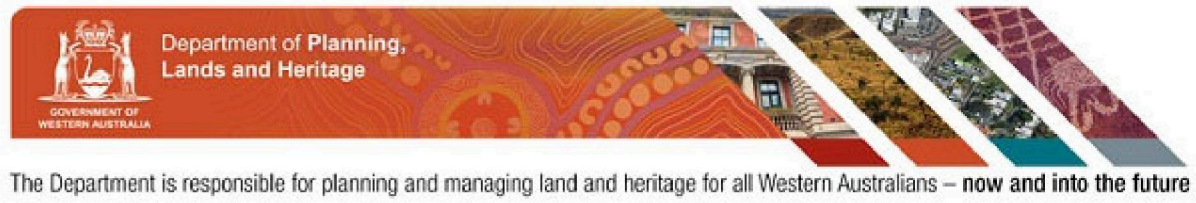
   Accordingly, the future act regime under the NT Act no longer applies and a Native Title Consideration Matrix is not required for this case.

2. **Advise whether the land parcels are currently under consideration for possible inclusion in the Noongar Land Estate or if there are other considerations for the land related to the South West Settlement.**
   Reserve 39478, Lot 10764 on Deposited Plan 187436 (PIN 111050) is not under consideration for inclusion into the Noongar Land Estate (NLE) as part of the South West Settlement. Accordingly, there are no implications under the Noongar Land Base Strategy and the team has no comments on the proposal.

Feel free to contact me if you have any further queries or wish to discuss.

Kind regards,

| Native Title Agreements and Partnerships
Department of Planning, Lands and Heritage
140 William Street, Perth WA 6000
wa.gov.au/dplh |



The Department acknowledges the Aboriginal people of Western Australia as the traditional custodians of this land, and we pay our respects to their Elders, past and present.

Released under the Freedom of Information Act 1992

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From:
Sent: Thursday, 18 May 2023 8:41 AM
To: Southwest Settlement <swsettlement@dplh.wa.gov.au>
Subject: Referral - Case Number 2301113 – Metropolitan

Hello South West Settlement team

Case Number **2301113 – Metropolitan**

We have received a proposal that intersects with land parcels located within the boundaries of the South West Native Title Settlement. The land details are:

- Reserve 39478, being Lot 10774 on Deposited Plan 187436 managed by the Minister for Police and Emergency Services for "Police Purposes".

The land parcels are located within the boundaries of the Tribunal number Whadjuk People (WI2017/015) Indigenous Land Use Agreement, and native title rights and interests are addressed per the below:

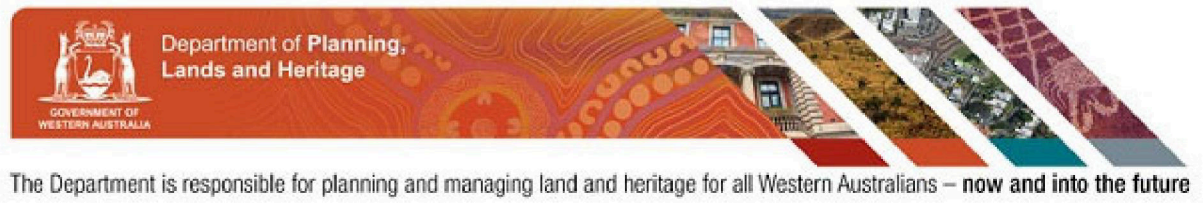
Pursuant to clause 6 of the registered Indigenous Land Use Agreements for the South West Native Title Settlement, (https://www.wa.gov.au/government/publications/south-west-native-title-settlement-indigenous-land-use-agreements) native title was surrendered over the Agreement Area with the effect that the future act regime under the *Native Title Act 1993* (Cth) no longer applies to the Agreement Area on and from 13 April 2021.

In accordance with the above, could you please:

1. confirm that a Native Title Consideration Matrix (**NTCM**) will not be required for this Case. Please note a staff notice is being drafted to support the decision where a NTCM is, or is not, required.
2. advise whether the land parcels are currently under consideration for possible inclusion in the Noongar Land Estate or if there are other considerations for the land related to the South West Settlement.

Kind regards,

| Land Management Metropolitan & Peel
Department of Planning, Lands and Heritage
140 William Street, Perth WA 6000
wa.gov.au/dplh |



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From:
Sent: Tuesday, 23 May 2023 4:29 PM
To:
Subject: RE: Case 2301113 - Relocation of Claremont Therapeutic Riding Centre to Reserve 39478 - City of Nedlands
Attachments: 20230518 - Tenure & Aerial Map of Relocation of Claremont Therapeutic Riding Centre.pdf

Hi

Apologies for the delayed response, I wanted to our Planning Team to view the proposal also.

Comments:

Land and Property

Reserve 45054 – Nearby land vested to the City of Nedlands for the designated purpose of 'depot site'.
Notwithstanding the City does not have the care, control and management of Reserve 39478, the proposed relocation of the Claremont Therapeutic Riding Centre to the subject Reserve will not adversely impact the current use or services being provided from Reserve 8636, nor will it affect the City's statutory right to manage and control Reserve 45054.

Planning

As there are no such plans prepared for this site, which would normally provide a coordinated response to the development, the development is assessed on the merits and intent for the site as per the objectives of the "Urban Development" zone, as below.

Objective: To provide an intention of future land use and a basis for more detailed structure planning in accordance with the provisions for this Scheme.
The proposal is consistent with the intended future use of the land. The City's Local Planning Strategy highlights that land uses and development within the Mt Claremont east area, in which the site is located, shall not conflict with the urban character being predominantly of sporting, research and educational facilities.

Objective: To identify areas that require comprehensive planning in order to provide for the coordination of subdivision, land use and development.
The use will not prejudice coordination of development within the wider area.

The City has no objections from a planning or land and property standpoint. It is noted that the development may require a development application for works and/or use. As the land is within the Subiaco Waste Water Treatment plant buffer, a referral to Water Corp is recommended.

Please let me know if you require any further information.

Kind Regards

City of Nedlands

Administration Centre
71 Stirling Highway WA 6009
PO Box 9 Nedlands WA 6909
9273 3500
nedlands.wa.gov.au
yourvoice.nedlands.wa.gov.au



From:
Sent: Thursday, May 18, 2023 1:15 PM
To:
Subject: Case 2301113 - Relocation of Claremont Therapeutic Riding Centre to Reserve 39478 - City of Nedlands

Good Afternoon

My colleague provided me your contact and said you might be able to assist with responding to the below referral?

RELOCATION OF CLAREMONT THERAPEUTIC RIDING CENTRE TO RESERVE 39478 – CITY OF NEDLANDS

The Department of Planning, Lands and Heritage recently received a request relating to a Cabinet decision for the relocation of the Claremont Therapeutic Riding Centre (**CTRC**) from its current location within Graylands Hospital Reserve 8636 to Reserve 39478, which is vacant but managed by the Minister for Police and Emergency Services for "Police Purposes". This decision was informed by investigative work undertaken by the Graylands Reconfiguration and Forensics Taskforce (**GRAFT**) which was established in 2020 to inform Government's planning and investment decisions regarding Graylands hospital site, forensic mental health service and Selby Older Adult Mental Health Service. GRAFT is supported by the Department of Health and the intention is for the Minister for Health to be transferred management of the new CTRC site at Reserve 39478, with power to lease for 21 years and the new reserve purpose being "Therapeutic Riding Activities". Furthermore, a portion of the adjoining Western Power Reserve 29320 is proposed to be excised and amalgamated within Reserve 39478 to expand the size of the new CTRC site.

For your reference, maps have been attached to this email detailing the location of the proposal.

It would be most appreciated if the City of Nedlands could provide any comments and recommendations they may have with regards to the proposal detailed above.

Please feel free to contact me should you have any questions or would like more information.

Kind regards,

| Land Management Metropolitan & Peel
Department of Planning, Lands and Heritage
140 William Street, Perth WA 6000
wa.gov.au/dplh |



The Department is responsible for planning and managing land and heritage for all Western Australians – **now and into the future**

The Department acknowledges the Aboriginal people of Western Australia as the traditional custodians of this land, and we pay our respects to their Elders, past and present.

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Department of **Planning, Lands and Heritage**

GOVERNMENT OF WESTERN AUSTRALIA

Legend

- Local Government Area
- Cadastre (View 1)
- Easements and Other Interests
- Roads
  - Main
  - Minor
- Land Tenure Large Scale 64k
  - Crown Allotment (Type 2)
  - Lot on Survey (Type 1)
  - Reserve
- Land Tenure Large Scale 16K
  - Crown Allotment (Type 2)
  - Lot on Survey (Type 1)
  - Public Road
  - Reserve
  - Easement
- Land Tenure Large Scale 4K
  - Easement

Notes:

* The data that appears on the map may be out of date, not intended to be used at the scale displayed, or subject to license agreements. The map should only be used in matters related to Department of Planning, Lands and Heritage business.

* This map is not intended for measurement purposes.

Map was produced using DPLH's InQuiry.

Aerial Map - Relocation of Claremont Therapeutic Riding Centre

DPLH BUSINESS USE ONLY

Internal Spatial Viewer

N

0 — 0.11 — 0.22 Kilometres

1: 5,000 at A4

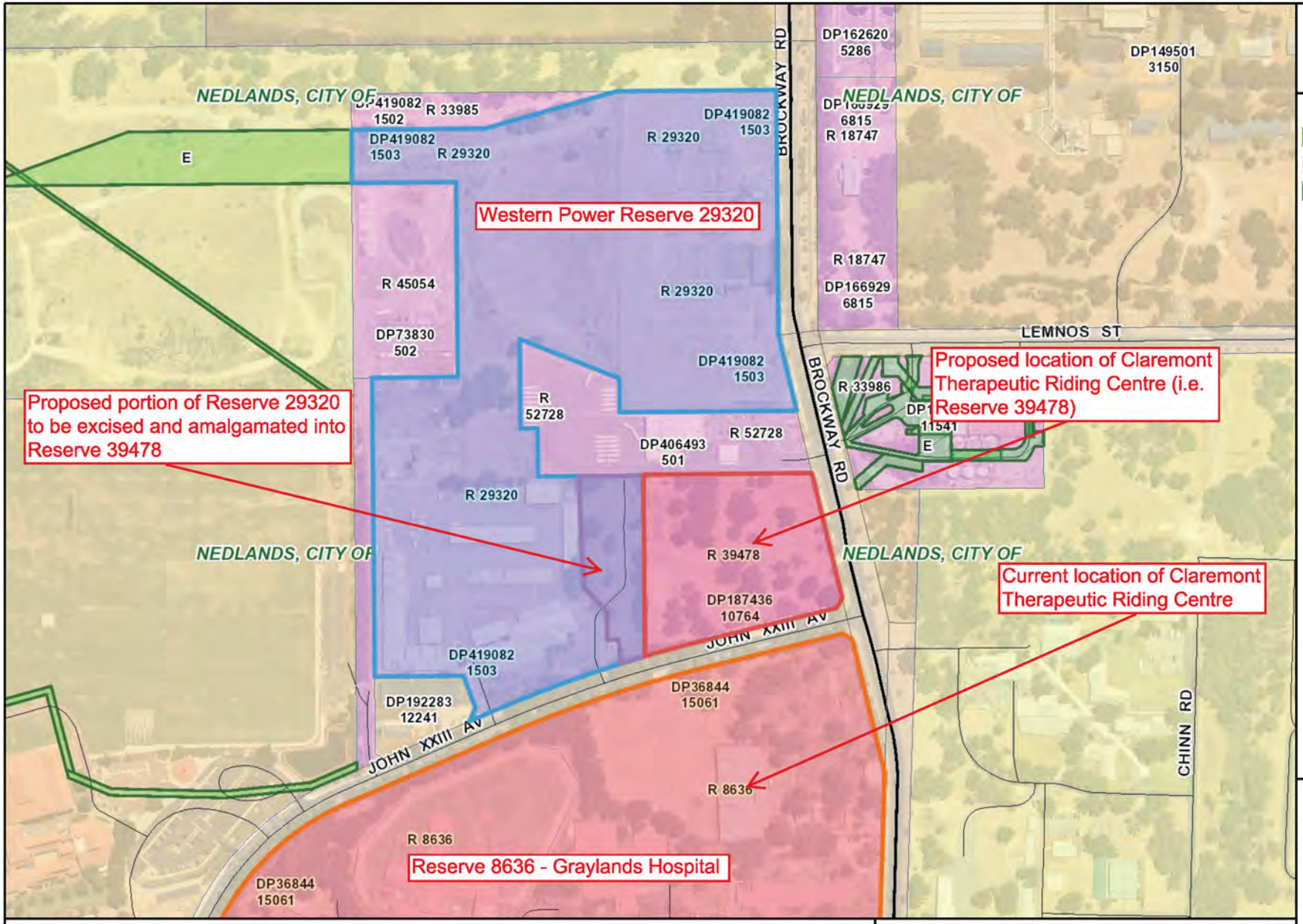
Projection: WGS 1984 Web Mercator Auxiliary Sphere

Graticules (if visible): GDA 1994 Latitude/Longitude

Date produced: 18-May-2023

Released under the Freedom of Information Act 1992

Document No. 2(a)



Department of **Planning, Lands and Heritage**

GOVERNMENT OF WESTERN AUSTRALIA

Legend

- Local Government Area
- Cadastre (View 1)
- Easements and Other Interests

Roads

- Main
- Minor

Land Tenure Large Scale 64k

- Crown Allotment (Type 2)
- Lot on Survey (Type 1)
- Reserve

Land Tenure Large Scale 16K

- Crown Allotment (Type 2)
- Lot on Survey (Type 1)
- Public Road
- Reserve
- Easement

Land Tenure Large Scale 4K

- Easement

Tenure Map - Relocation of Claremont Therapeutic Riding Centre

DPLH BUSINESS USE ONLY

Internal Spatial Viewer

N

0 0.11 0.22 Kilometres

1:5,000 at A4

Projection: WGS 1984 Web Mercator Auxiliary Sphere

Graticules (if visible): GDA 1994 Latitude/Longitude

Notes:

* The data that appears on the map may be out of date, not intended to be used at the scale displayed, or subject to license agreements. The map should only be used in matters related to Department of Planning, Lands and Heritage business.

* This map is not intended for measurement purposes.

Map was produced using DPLH's InQuiry.

Date produced: 18-May-2023

Released under the Freedom of Information Act 1992

Document No. 2a

Released under the Freedom of Information Act 1992

Document No. 3

From:
Sent: Tuesday, 30 May 2023 10:59 AM
To:
Subject: RE: Case 2301113 - Relocation of Claremont Therapeutic Riding Centre to Reserve 39478 - City of Nedlands

You don't often get email from . Learn why this is important

Hi

Thank you for referring this to us for comment. We have no objection to the proposed use as we consider it a compatible use with the Subiaco Wastewater Treatment Plant buffer.

Kind Regards

Development Services

E

From:
Sent: Wednesday, 24 May 2023 9:15 AM
To: POS_ENQUIRIES <POS_Enquiries@watercorporation.com.au>
Subject: Case 2301113 - Relocation of Claremont Therapeutic Riding Centre to Reserve 39478 - City of Nedlands

Case: 2301113
File: 02776-1985

Good Morning,

RELOCATION OF CLAREMONT THERAPEUTIC RIDING CENTRE TO RESERVE 39478 – CITY OF NEDLANDS

The Department of Planning, Lands and Heritage recently received a request for the relocation of the Claremont Therapeutic Riding Centre (**CTRC**) from its current location within Graylands Hospital Reserve 8636 to Reserve 39478, which is vacant but managed by the Minister for Police and Emergency Services for "Police Purposes". This decision was informed by investigative work undertaken by the Graylands Reconfiguration and Forensics Taskforce (**GRAFT**) which was established in 2020 to inform Government's planning and investment decisions regarding Graylands hospital site, forensic mental health service and Selby Older Adult Mental Health Service. GRAFT is supported by the Department of Health and the intention is for the Minister for Health to be transferred management of the new CTRC site at Reserve 39478, with power to lease for 21 years and the new reserve purpose being "Therapeutic Riding Activities". Furthermore, a portion of the adjoining Western Power Reserve 29320 is proposed to be excised and amalgamated within Reserve 39478 to expand the size of the new CTRC site.

Advice from the City of Nedlands revealed that the site (i.e. Reserve 39478) is within the Subiaco Waste Water Treatment plant buffer and comments from Water Corporation should be sought in this respect.

For your reference, maps have been attached to this email detailing the location of the proposal.

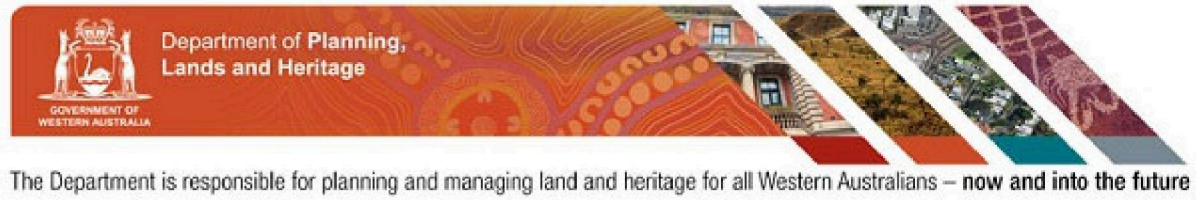
It would be most appreciated if the Water Corporation could provide any comments and recommendations they may have with regards to the proposal detailed above.

Released under the Freedom of Information Act 1992

Please feel free to contact me should you have any questions or would like more information.

Kind regards,

| Land Management Metropolitan & Peel
Department of Planning, Lands and Heritage
140 William Street, Perth WA 6000
wa.gov.au/dplh |



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Released under the Freedom of Information Act 1992

From:
Sent: Wednesday, 05 March 2025 15:47:43
To:
Cc:
Subject: RE: Claremont Therapeutic Riding Centre - MRS

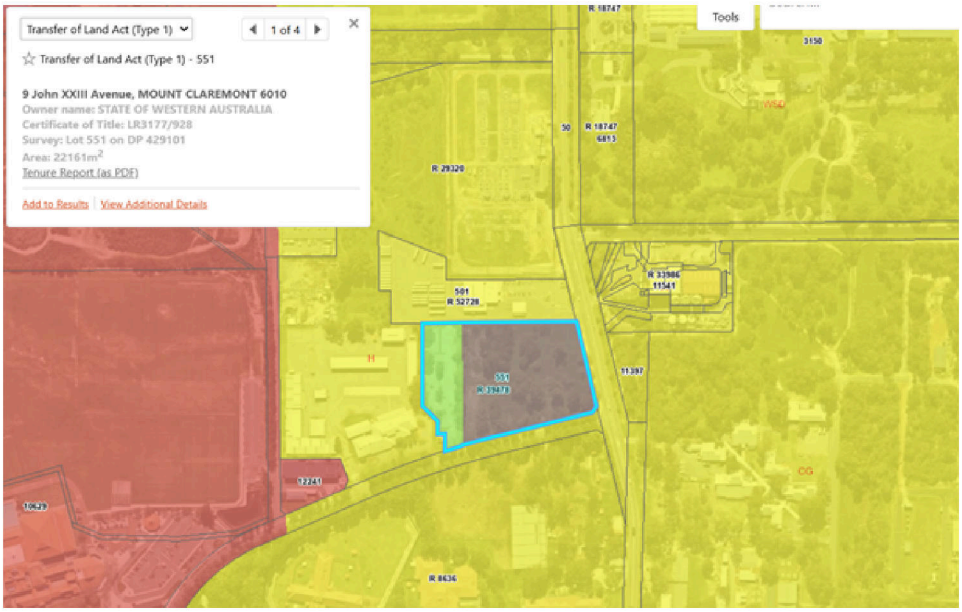
OFFICIAL

Hi

Confirming that the Department won't require an MRS amendment as a prerequisite to supporting the proposed CTRC DA.

can we please catch you some time tomorrow to discuss the possibility of adding this site to the next MRS omnibus amendment to remove the Public Purpose - Hospital reservation?:

Released under the Freedom of Information Act 1992



Regards,

[redacted] | Land Use Planning
Department of Planning, Lands and Heritage
140 William Street, Perth WA 6000
W: wa.gov.au/dplh | P [redacted]

Government of Western Australia. Department of Planning, Lands and Heritage.

The Department of Planning, Lands and Heritage acknowledges Aboriginal people as the traditional custodians of Western Australia. We pay our respects to the Ancestors and Elders, both past and present, and the ongoing connection between people, land, waters and community. We acknowledge those who continue to share knowledge, their traditions and culture to support our journey for reconciliation. In particular, we recognise land and cultural heritage as places that hold great significance for Aboriginal people.
Learn more about our Reconciliation Action Plan.

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From: [redacted]
Sent: Wednesday, 5 March 2025 3:29 PM
To: [redacted]
Subject: Claremont Therapeutic Riding Centre - MRS

OFFICIAL

Hi [redacted]

Just wanted to follow up our meeting about the MRS and the Claremont Therapeutic Riding Centre the other week.

Can you please confirm your advice from the meeting that the current MRS zoning of Urban, and small portion of Public Purpose – Hospital, is suitable for the CTRC and that MRS amendment won't be required?

Thanks

[redacted]

Released under the Freedom of Information Act 1992

[redacted] Advisory Services
Djookanup, 16 Parkland Rd, Osborne Park WA 6017

- [redacted] | WA.gov.au

The Department of Finance acknowledges the traditional custodians of Western Australia and their continuing connection to the land, waters and community. We pay our respects to all members of Aboriginal communities and their cultures; and to Elders both past and present.

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Released under the Freedom of Information Act 1992

From:
Sent: Thursday, 23 July 2026 4:41 PM
To:
Subject: RE: Graylands Campus - GAWA Design Review DPLH Comments

HI

Please see our points below. I understand the works are staged, but will the future stages incorporate the buildings within the curtilage? Please see our very high-level comments to the DRP

- Noting the new works fall well outside of the State registered curtilage, the heritage considerations at this stage would appear to be minimal.
- Our key interests are likely to be confined to preservation of any significant site lines and historic vehicular/pedestrian linkages (eg. from Brockway Road), and to ensure scale and materiality of the new built form is complimentary to, yet distinct from the heritage buildings.
- We also have an interest in the retained and/or ongoing use implications for the heritage-listed buildings.

Kind regards

Historic Heritage Conservation | Heritage and Property Services
Department of Planning, Lands and Heritage
Boorloo (Perth)
140 William Street, Perth WA 6000
W: dplh.wa.gov.au | P: | M:



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We pay our respects to the Ancestors and Elders, both past and present, and the ongoing connection between people, land, water
and community. We acknowledge those who continue to share knowledge, their traditions and culture to support our journey for
reconciliation. In particular, we recognise land and cultural heritage as places that hold great significance for Aboriginal people.
Learn more about our Stretch Reconciliation Action Plan.

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From:
Sent: Thursday, 23 July 2026 4:12 PM
To:
Subject: RE: Graylands Campus - GAWA Design Review DPLH Comments

Thanks

Released under the Freedom of Information Act 1992

Much appreciated.

Regards,

[redacted]

[redacted]

[redacted]

T: [redacted]

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From: [redacted]
Sent: Thursday, 23 July 2026 4:10 PM
To: [redacted]
Subject: RE: Graylands Campus - GAWA Design Review DPLH Comments

OFFICIAL

Hi [redacted]

[redacted] and I provided some advice to GAWA prior to the Design Review that I believe happened last week.

I can send through our high level comments for your info. As the proposal is outside the curtilage, we didn't have huge concerns. Let me find the advice and I will get back to you.

Thanks

[redacted] Historic Heritage Conservation | Heritage and Property Services
Department of Planning, Lands and Heritage
Boorloo (Perth)
140 William Street, Perth WA 6000
W: dplh.wa.gov.au | P: [redacted] | M: [redacted]



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We pay our respects to the Ancestors and Elders, both past and present, and the ongoing connection between people, land, water
and community. We acknowledge those who continue to share knowledge, their traditions and culture to support our journey for

Released under the Freedom of Information Act 1992

reconciliation. In particular, we recognise land and cultural heritage as places that hold great significance for Aboriginal people. Learn more about our Stretch Reconciliation Action Plan.

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From:
Sent: Thursday, 23 July 2026 2:21 PM
To:
Subject: FW: Graylands Campus - GAWA Design Review DPLH Comments

Hi

We are providing advice to the design team for the new Graylands development. The concept design stage has been completed, and feedback was provided by DHW/ Government Architect about liaising with DPLH on the heritage impacts from the proposal.

Most of the proposal sits outside the registered curtilage apart from fire services infrastructure to be located on an existing carpark within the registered curtilage, see extract below plus reference material attached.



We have not come to an understanding for the extension of the curtilage in this manner apart from perhaps to capture a peppermint tree that remains, the rest is carpark. We see the proposed fire services as having negligible impact on the significance of the site.

Do you see any concerns for DPLH with this proposal?

Please contact me should wish to discuss the above further.

Regards,

Released under the Freedom of Information Act 1992

[redacted]

[redacted]

T: [redacted]

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